

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF VENTURA**

**Tentative Ruling**

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**2024CUPP034967: GLADYS SOLIS, et al. vs ALBERTO PEREZ, et al.**

**07/13/2026 in Department 21**

**Motion to Contest The Good Faith of Defendant, Alberto Perez' Settlement with the  
Plaintiffs; Joinder to Motion Filed By Defendant**

**Chedraui USA, Inc. (erroneously sued as Chedraui USA, Inc. dba El Super)**

**Tentative Rulings.** Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to [courtroom21@ventura.courts.ca.gov](mailto:courtroom21@ventura.courts.ca.gov) before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

**The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.**

**Motions:**

- (1)** Mercado Latino, Inc. dba Continental Candle Company’s Motion to Contest the Good Faith of Defendant, Alberto Perez’ Settlement with the Plaintiffs (*Opposed*)
- (2)** Joinder to Motion filed by Defendant Chedraui USA, Inc. (erroneously sued as Chedraui USA, Inc. dba El Super)

**Tentative Ruling:**

The Motion to Contest the Good Faith of Defendant Alberto Perez’s Settlement with Plaintiffs is DENIED without prejudice.

Chedraui’s joinder is considered to the extent it merely joins Mercado’s request for relief, but it is DENIED for the same reasons.

The Court clarifies that approval of the petitions for approval of minors’ compromises, if otherwise granted in the related action, shall not constitute a determination that the settlement was made in good faith under CCP § 877.6, and shall not by itself bar any contribution, comparative indemnity, or apportionment rights Mercado or Chedraui may otherwise have.

Mercado and Chedraui’s request to continue the minors’ compromise hearing and the hearing on this motion is DENIED.

Plaintiffs’ counsel to give notice.

**Discussion:**

Mercado's concern is understandable. A good-faith determination under CCP § 877.6 could affect Mercado's asserted comparative indemnity, contribution, or apportionment rights against Perez. Further, Mercado would have standing to be heard if a proper section 877.6 application were filed. Section 877.6 may apply where the settling tortfeasor is a cross-defendant in an indemnity action, even if not directly sued by the plaintiff, so long as the pleadings allege joint tortfeasor liability. (*Mattco Forge*, supra, 38 Cal.App.4th at pp. 1347-1348.)

However, no application or motion for determination of good-faith settlement under CCP § 877.6 is presently before the Court. Plaintiffs represent that they filed petitions for approval of minors' compromises, not an application for a good-faith determination. Mercado's own moving papers acknowledge that Perez and Plaintiffs had not filed a proper CCP § 877.6 application and had not disclosed the settlement terms, amount, allocation, or basis for any requested good-faith finding.

Thus, the present motion is premature and procedurally misdirected. Mercado is not opposing an actual CCP § 877.6 application. Instead, it seeks to use the pending minor's compromise proceedings in the related Perez action as the vehicle for a *Tech-Bilt* good-faith-settlement challenge. That is not the proper procedure.

The two proceedings are legally distinct. The minor's compromise petitions concern whether the settlements are fair, reasonable, and in the best interests of the minor Plaintiffs. A good-faith-settlement determination under CCP § 877.6 serves a different purpose: it determines whether the settlement should bar future contribution or comparative indemnity claims by non-settling joint tortfeasors. (*Tech-Bilt*, supra, 38 Cal.3d at p. 493.) Approval of the minors' compromises does not automatically constitute a CCP § 877.6 good-faith determination and does not, by itself, trigger the statutory bar of CCP § 877.6(c).

Nor does Mercado have a right, through this motion, to object to or delay the minors' compromise petitions simply because it may later wish to contest a good-faith settlement application. Under *Pearson*, the purpose of court approval of a minor's compromise is to protect the minor, and the approval requirement does not confer on a defendant or insurer a right to object to the compromise petition. (*Pearson*, supra, 202 Cal.App.4th at pp. 1338-1339.) The Court also declines to adjudicate whether the Perez settlement was made in good faith on the present record. A proper CCP § 877.6 application would require disclosure of the settlement terms, amount, allocation, basis for the settlement, and evidence sufficient to permit analysis under *Tech-Bilt*. Because no such application is pending, there is no ripe *Tech-Bilt* issue for the Court to decide.

Mercado's request for a continuance is likewise denied. Mercado originally requested a 90-day continuance and, in its Reply, requested a 60-day continuance. The purpose of the requested continuance is to allow Mercado additional time to evaluate and oppose a good-faith determination. But no good-faith determination is presently requested. The Court will not continue the minors' compromise proceedings for the purpose of allowing discovery into a non-pending CCP § 877.6 application.

This ruling does not prejudice Mercado's rights if a proper CCP § 877.6 application is later filed. If Plaintiffs, Perez, or any other party later seeks a determination of good-faith settlement under CCP § 877.6 in either related action, the moving party must comply with the statute and provide sufficient information to permit the Court and non-settling parties to evaluate the *Tech-Bilt* factors. Mercado may oppose any such application at that time.

#### Chedraui's Joinder

Chedraui filed a notice of joinder to Mercado's motion. The notice states that Chedraui adopts and incorporates Mercado's memorandum, declarations, and exhibits, and requests the same relief: denial of any good-faith-settlement determination or, alternatively, a 90-day continuance for procedural compliance, investigation, and targeted discovery. The joinder does not raise any new substantive argument or identify any independent procedural basis for relief.

The joinder was electronically filed on July 9, 2026, for a July 13, 2026 hearing, although the proof of service states service occurred by email on June 26, 2026. The Court need not decide whether the joinder was timely because, even if considered, it does not change the analysis. Chedraui's rights, like Mercado's, are not impaired by denial without prejudice of this premature motion. No CCP § 877.6 application is pending, and approval of the minors' compromise petitions will not itself constitute a good-faith-settlement determination or bar Chedraui's contribution, comparative indemnity, or apportionment rights.

#### **Conclusion:**

The Motion to Contest the Good Faith of Defendant Alberto Perez's Settlement with Plaintiffs is DENIED without prejudice.

Chedraui's joinder is considered to the extent it merely joins Mercado's request for relief, but it is DENIED for the same reasons.

Mercado and Chedraui's request to continue the minors' compromise hearing and the hearing on this motion is DENIED.